

Report conversation

where in the california legal code specifies the maximum age for students (24) to qualify for an child exemption for the ca amt

The specific provision regarding the age limit for child exemptions under the California Alternative Minimum Tax (AMT) can be found in the California Revenue and Taxation Code (RTC). However, as of my last update in April 2023, detailed and up-to-date legal references would require checking the most current version of the California RTC, as tax laws and regulations can change.

For the specific issue of age limits related to child exemptions under the California AMT, the relevant sections typically involve definitions and qualifications for dependents. Under federal tax law, for instance, the Internal Revenue Code (IRC) provides guidelines for dependents and exemptions, which state and local jurisdictions can reference or modify for their purposes.

California tax law often mirrors federal law with certain adjustments. The age limit for a qualifying child for exemption purposes, under federal guidelines, generally includes students up to age 24. Specifically, a qualifying child must be under the age of 19 at the end of the tax year or under the age of 24 if a full-time student for at least five months of the year. They must also live with the taxpayer for more than half of the year and not provide over half of their own support.

To find the exact provision in the California Revenue and Taxation Code regarding the age limit for qualifying children under the AMT, you would need to consult the latest version of the code. This information can often be found on the official website of the California Franchise Tax Board (FTB) or through legal databases that provide up-to-date state laws and regulations.

where in the irc specifies exemption ages

In the Internal Revenue Code (IRC), the specifics regarding exemption ages for qualifying children are primarily outlined in Section 152, which defines dependents for the purposes of federal tax laws, including exemptions and credits. The key points concerning age for a qualifying child are found under IRC Section 152(c).

As of my last update, here's a summary of the age-related requirements for a qualifying child under the IRC:

- 1. Age Requirement:** A qualifying child must be under age 19 at the end of the tax year, or under age 24 if a full-time student for at least five months of the year. There is no age limit if the child is permanently and totally disabled at any time during the year.
- 2. Full-Time Student Status:** The IRC provides a definition of a full-time student as someone who is enrolled for the number of hours or courses the school considers to be full-time attendance, during at least five calendar months of the year. These months do not have to be consecutive.
- 3. Relationship, Residency, and Support Tests:** Beyond the age requirements, the child must also meet relationship, residency, and support tests to qualify. They must be the taxpayer's son, daughter, stepchild, foster child, brother, sister, half-brother, half-sister, stepbrother, stepsister, or a descendant of any of them (for example, a grandchild). The child must have lived with the taxpayer for more than half of the tax year (there are exceptions for birth, death, and temporary absences) and must not have provided more than half of their own support for the year.

These requirements are part of determining eligibility for various tax benefits, including the Child Tax Credit and the Earned Income Tax Credit, among others. Tax laws can change, so it's always a good idea to refer to the most recent IRS publications or consult a tax professional for the current rules.